

CHAPTER 39.

An Act to include offences in relation to dangerous drugs, and attempts to commit such offences, among extradition crimes. [12th July 1932.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Amendment
of 33 & 34
Vict. c. 52,
Sched. I.

1. The Extradition Act, 1870, shall be construed as if offences against any enactment for the time being in force relating to dangerous drugs, and attempts to commit such offences, were included in the list of crimes in the First Schedule to that Act.

Short title
and citation.

2. This Act may be cited as the Extradition Act, 1932, and the Extradition Acts, 1870 to 1906, and this Act may be cited together as the Extradition Acts, 1870 to 1932.

CHAPTER 40.

An Act to amend the law with respect to gas undertakings. [12th July 1932.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Power of
undertakers
to invest in
securities of
other com-
panies, &c.

1.—(1) Subject to the provisions of this Act, and subject, in the case of a registered company, to the provisions of the memorandum and articles of association of the company, it shall be lawful for any gas undertakers to lend money on mortgage to, and subscribe for, acquire, hold and dispose of any shares, stock, mortgages,

debentures or debenture stock of, any company or local authority who—

- (a) carry on or are about to carry on, in any part of the United Kingdom, any process or operation of the same or substantially the same character as any process or operation which the undertakers are, as such, authorised to carry on; or
- (b) are engaged or about to be engaged, in any part of the United Kingdom, solely in developing inventions or processes calculated to improve the manufacture or distribution of gas or the utilisation of residual products arising from the manufacture of gas:

Provided that—

- (i) the aggregate amount of the investments of any local authority under the powers conferred by this section shall not exceed one-tenth part of the capital for the time being expended by the authority in connection with their gas undertaking, and the aggregate amount of the investments of any other undertakers under the said powers shall not exceed one-twentieth, or with the approval of the Board of Trade one-tenth, part of the aggregate amount of the authorised share and loan capital for the time being of such undertakers; and
 - (ii) where in any calendar year any undertakers have supplied less than two hundred and fifty million cubic feet of gas, then, in its application to those undertakers during the next succeeding calendar year, this subsection shall, except as respects investments previously made, have effect as if paragraph (b) were omitted therefrom.
- (2) For the purposes of proviso (i) to the last foregoing subsection, the aggregate amount of the investments of any undertakers under the powers conferred by this section shall be taken to be the aggregate of—
- (a) the sums expended by the undertakers in making such investments still held by them; and
 - (b) the amount, if any, by which the sums expended by the undertakers in making such investments

no longer held by them exceed the capital sums received by them in respect thereof upon disposing of, or otherwise ceasing to hold, those investments.

(3) No investment shall be made by a local authority under the powers conferred by this section except with the approval of the Board of Trade.

Power of
local autho-
rities to
borrow for
purposes of
Act.

2. For the purpose of making investments under the powers conferred by this Act, any gas undertakers being a local authority may, with the sanction of the Minister of Health (given with the concurrence of the Board of Trade) and subject to such conditions as he may impose, borrow such sums as may be so approved, not exceeding in the aggregate one-tenth part of the capital for the time being expended by the undertakers in connection with their gas undertaking.

Application
of profits on
investments
under this
Act.

3. Any capital sums received by any gas undertakers in respect of investments made under the powers conferred by this Act, upon disposing of, or otherwise ceasing to hold, those investments, shall, except in so far as they may lawfully be invested under this Act, be applied, in the case of undertakers being a local authority, in accordance with such directions as may be given by the Minister of Health, and, in any other case, as if they were premiums paid to the undertakers on the sale of share capital issued by them.

Interpreta-
tion.

4.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them, that is to say :—

“ Authorised share and loan capital ” means, in relation to any undertakers, the sums which the undertakers are, as such, authorised to raise by the issue of share capital and by means of borrowing on mortgage for the purposes of their gas undertaking ;

“ Company ” means (except for the purposes of the definition of “ registered company ”) a company incorporated or about to be incorporated in Great Britain, and any body corporate exercising, under any Act or order having the force of an Act, statutory powers comprising any of the functions mentioned in paragraph

(a) or paragraph (b) of subsection (1) of section one of this Act;

“Gas undertakers,” “undertakers” and “local authority” have, respectively, the same meanings as in the Gas Regulation Act, 1920;

10 & 11

Geo. 5. c.28.

“Registered company” means a company as defined by the Companies Act, 1929.

19 & 20

Geo. 5. c.23.

(2) In the application of this Act to Scotland, references to the Minister of Health shall be construed as references to a Secretary of State.

5.—(1) This Act may be cited as the Gas Undertakings Act, 1932, and this Act and the Gas Undertakings Acts, 1920 and 1929, may be cited together as the Gas Undertakings Acts, 1920 to 1932.

Short title,
citation and
extent.

(2) This Act shall not extend to Northern Ireland.

CHAPTER 41.

An Act to amend the law with respect to Customs in the Isle of Man. [12th July 1932.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I.

PROVISIONS AS TO ORDERS CORRESPONDING TO ORDERS MADE UNDER 22 & 23 GEO. 5. C. 8, AS AMENDED.

1.—(1) Where an order is made by the Treasury under section seven of the Finance Act, 1932, directing that goods of any class or description for the time being included in the First Schedule to the Import Duties Act, 1932, shall cease to be so included, the Governor may by order direct that goods of the classes and descriptions specified in the Treasury order shall cease to be included in the First Schedule to the first Act of 1932.

Provisions
as to orders
affecting
Schedule I
of 22 & 23
Geo. 5. c.16.
22 & 23
Geo. 5. c. 8.
22 & 23
Geo. 5. c. 25.